

# Himanshu Chordia vs Arushi Jain on 29 October, 2025

**Author: Kuldeep Mathur**

**Bench: Kuldeep Mathur**

[2025:RJ-JD:46200]

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT  
JODHPUR  
S.B. Civil Transfer Appl. No. 309/2024

Arushi Jain D/o Dr. Anil Jain, Aged About 31 Years, W/o  
Himanchu Choradiya, R/o Hitawala Tower, Flat No. 502, Near  
Celebration Mall, Bhuwana, Udaipur (Raj.)

----Petitioner

Versus

Himanshu Choradia S/o Shri Anil Choradia, R/o Sohan Ghati  
Near Mahaveer Bhawan, Nimbaheda, Rajasthan, Presently He  
Is R/o Mumbai Working In Grid India At Mumbai, Maharastra.

----Respondent

Connected With

S.B. Civil Transfer Appl. No. 75/2025  
Himanshu Chordia S/o Anil Chordia, Aged About 36 Years, R/  
o Sohanchati, Near Mahaveer Bhawan, Nimbahera, Raj.  
312601, Currently Posted At Wrldc, Mumbai Email Id-  
Ankurchorida2007@gamil.com

----Petitioner

Versus

Arushi Jain D/o Dr. Anil Jain, Aged About 31 Years, R/o 502,  
Hitawala Tower, Near Celebration Mall, Bhuwana, Udaipur,  
Raj. 313001

----Respondent

S.B. Civil Transfer Appl. No. 174/2025

Arushi Jain S/o Dr Anil Jain, Aged About 32 Years, Resident Of  
Hitawala Tower, Flat No.502, Near Celebration Mall, Bhuwana,  
Udaipur (Rajasthan).

----Petitioner

Versus

- 1 Himanshu Choradia S/o Anil Choradia, Aged About 36  
Years, R/o Sohan Ghati Near Mahaveer Bhawan,  
Nimbaheda, Rajasthan.
- 2 Deepak Moondra, Aged About 28 Years, House No. 19,  
Ramvatika, Near Muni Suvrt Swami Jain Mandir, New  
Bhopalpura, Udaipur 313001.

----Respondents

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For Petitioner(s) : Mr. Manish Kumar Vyas  
Mr. Aman Gaur  
For Respondent(s) : Ms. Apurva Chordia (through VC)

HON'BLE MR. JUSTICE KULDEEP MATHUR

Order Reserved on:- 15/10/2025 Pronounced on:- 29/10/2025

1. The present batch of transfer petitions involves common facts and questions of law; therefore, they are decided by this common order.
2. Before dealing with the common arguments raised by the learned counsel appearing for the parties, this Court deems it just and proper to reproduce the prayers made in each of the transfer petitions as under:

S.B. Civil Transfer Application No. 309/2024:-

1. It is, therefore, most humbly and respectfully prayed that this transfer application may kindly be allowed and Civil Misc. Case No.129/2024 titled Himanshu Choradia vs. Arushi Jain, filed under Section 13(1)(ia)(ib) of the Hindu Marriage Act, pending before the Court of Additional District Judge No.1, Nimbahera, may kindly be ordered to be transferred to the Family Court, Udaipur, or any other competent court at Udaipur, in the interest of justice.
2. Any other appropriate relief which this Hon'ble Court deems just and proper may kindly be granted in favour of the petitioner.

S.B. Civil Transfer Application No. 75/2025:-

"In view of the above, it is most humbly prayed that this Hon'ble Court may be pleased to:

1. Transfer all the following pending cases and other connected matters, if any, to a Court at Nimbahera or any other impartial jurisdiction:

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[CTA-309/2024] Case No. Matter/Act Court 387/2020 Guardian & Ward Act 1890  
(Child Ld. Family Custody Matter) Court2, 13/2023 Contempt of Court Udaipur Not  
(connected with registered 387/2020) Not registered

2. Direct that no further coercive action be taken against the petitioner in the ongoing proceedings in Udaipur until the transfer is completed.

3. pass any other or further orders as may be deemed fit and proper in the circumstances of the case in favour of the petitioner."

S.B. Civil Transfer Appl. No. 174/2025:-

a) Transfer HMA Case No.104/2024 titled as Himanshu Choradia vs. Arushi Jain filed under Section 10 of the Hindu Marriage Act, 1955, from the Court of Learned Additional District Judge No.1, Nimbahera, District Chittorgarh to the Family Court, Udaipur;

b) In the interim, stay the proceedings of HMA Case No.104/2024, in the light of the stay already granted in the connected petition under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955; and

c) Pass any other appropriate order or direction that this Hon'ble Court may deem fit and proper in the interest of justice."

3. In the transfer petitions filed by the wife, Arushi Jain, it is stated that her marriage with Himanshu Choradia (husband) was solemnized on 07.07.2014 at Udaipur as per Hindu rites and rituals. Out of the said wedlock, a baby boy named Charvik was born. It is stated that due to mental and physical cruelty caused by the husband, the wife has been constrained to live separately since 27.04.2020 at her parental home situated in Udaipur.

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4. The wife, Arushi Jain, seeks transfer of Case No.104/2024 titled Himanshu Choradia vs. Arushi Jain, filed under Section 10 of the Hindu Marriage Act, pending before the Court of Additional District Judge No.2, Nimbahera, District Chittorgarh, and Case No.129/2024 titled Himanshu Choradia vs. Arushi Jain, filed under Section 13(1)(ia)(ib) of the Hindu Marriage Act, pending before the same Court, to the Family Court, Udaipur.

5. It is the case of the wife that she is presently residing with her parents at Udaipur; she has no independent source of income and is entirely dependent upon her parents for her and her son's livelihood and legal expenses. She further has no relatives with whom she can stay at Nimbahera. The husband, Himanshu Choradia, is presently posted at WRLDC, Mumbai, and travels to Nimbahera and Udaipur to attend the various ongoing court proceedings inter se between the parties. Therefore, if the matters are transferred to the courts at Udaipur, the same would not cause any prejudice to him.

S.N Case Title/ Parties Case No. Court  
o.

Nature of  
Case

|                                       |              |
|---------------------------------------|--------------|
| 1.A Arushi v Himanshu 570/2021 PCPNDT | Maintenance  |
| Court,                                | (Main case)  |
| Udaipur                               |              |
| B Arushi v. Himanshu 633/2024, PCPNDT | Recovery     |
| (17 Recovery 631/2024, Court,         | applications |
| Applications) 5162/2024 Udaipur       | in           |
| , 57/2025,                            | Maintenance  |
| 37/2025,                              |              |
| 630/2024,                             |              |
| 632/2024.                             |              |
| , 56/2025,                            |              |
| 38/2025,                              |              |

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2. Arushi v. Himanshu, 1815/2021 PCPNDT Domestic Apurva, Renu, Anil Court, Violence Chordia & Mukul Udaipur Samar

3. Himanshu v. Arushi 387/2020 Family Child Court Custody No.2, Udaipur

4. State v. Himanshu & FIR PS Mahila Criminal Ors. No.73/202 Thana, Case (498A, o Udaipur 406, 377 IPC)

5. Arushi v. Himanshu 99623/202 PCPNDT Final Report 3 Court, (FR) Udaipur

6. Arushi v. Himanshu Contempt - Contempt No.10/202 Petition

7. Arushi v. Himanshu Contempt - Contempt No.11/202 Petition

8. Arushi v. Himanshu Contempt - Contempt No.12/202 Petition

9. Himanshu v. Arushi Contempt - Contempt No.13/202 Petition

10. Himanshu v. Arushi Contempt - Contempt No.13/202 Petition

6. Conversely, in Transfer Application No.75/2025, the husband seeks transfer of cases pending between the parties from Udaipur to Nimbahera on the ground that the wife's family holds significant political and social influence in Udaipur, her father being a Government doctor and her maternal uncle a Senior IAS Officer. It is further alleged that the Presiding Officer of the Family Court, Udaipur, is biased towards the wife, and he, therefore, has no hope of getting justice at Udaipur. According to the husband, he was unnecessarily (Uploaded on 29/10/2025 at 04:01:00 PM) [2025:RJ-JD:46200] (6 of 10) [CTA-309/2024] harassed and humiliated by the police and advocates in Udaipur on multiple occasions, and the Presiding Officer's conduct was also insensitive towards him. It is further contended that Nimbahera is only a 1.5 to 2-hour drive from Udaipur and, therefore, it would not be inconvenient for the wife if the cases are transferred to Nimbahera. The

husband also states that his mother is critically ill and undergoing treatment at Mumbai for last-stage cancer. The following cases between husband- Himanshu Choradia and the wife- Arushi Jain are pending before the Family Court, Nimbahera:-

S.No Case title/ Case No. Court Nature of Case . parties

1. Himanshu v. 129/2024 Family Court/ Petition under Arushi District Court, Section 13, Nimbahera Hindu Marriage Act.

2. Himanshu v. 104/2024 Family Court/ Petition under Arushi District Court, Section 10, Nimbahera Hindu Marriage Act.

7. It is noticed that a few other cases between the family members of the wife and the husband are pending before the courts at Nimbahera, but since the transfer of those cases has not been sought, their details have not been included in this order.

8. Heard.

9. From the perusal of the record, it appears that the husband filed S.B. Criminal Misc. Petition No.4476/2024 titled Himanshu Choradia vs. State & Anr., challenging the order dated 27.06.2024 passed by the court at Udaipur on an (Uploaded on 29/10/2025 at 04:01:00 PM) [2025:RJ-JD:46200] (7 of 10) [CTA-309/2024] application under Sections 125(4) and 91 Cr.P.C., whereby the court had allowed the application seeking interim maintenance filed on behalf of the wife. The order was challenged on the ground that the wife was allegedly living an adulterous life. A Coordinate Bench of this Court, vide order dated 04.02.2025, dismissed the petition and held that such a ground can be considered and decided only at the time of final disposal of proceedings under Section 125 Cr.P.C., and on that count, the order of interim maintenance could not be interfered with.

10. The said order dated 04.02.2025 has been challenged by the husband by filing Special Leave to Appeal (Crl.) No.3171/2025 before the Hon'ble Supreme Court of India. The Hon'ble Supreme Court, vide order dated 28.07.2025, stayed the operation of the order dated 04.02.2025 qua the wife, Arushi Jain, and directed all courts before which matters between the parties are pending to decide the same expeditiously.

11. Admittedly, the wife is presently living with her minor son, Charvik, at Udaipur in her parental house. No material has been placed on record to indicate that she has any independent source of income. The presumption, therefore, would be that she is dependent upon her parents to meet her day-to-day expenses, travel and litigation expenses in defending the cases pending at Nimbahera which is approximately 1.5 to 2 hours' drive from Udaipur. Cases between the parties are pending at both Nimbahera and Udaipur.

(Uploaded on 29/10/2025 at 04:01:00 PM) [2025:RJ-JD:46200] (8 of 10) [CTA-309/2024] The husband is presently posted at Mumbai and attends court proceedings at both places i.e. Nimbahera

and Udaipur by travelling from Mumbai. It is observed that there is a direct train from Mumbai to Udaipur, which, being a major city and medical hub of Rajasthan, also has better facilities for the treatment of his ailing mother.

12. The transfer of cases from Udaipur to Nimbahera has been sought by the husband mainly on the ground of the wife's family's alleged influence in Udaipur and the alleged biased attitude of the presiding officer. On consideration of the material on record, this Court finds that the allegations of bias are vague and unsubstantiated by any evidence. If such requests for transfer were to be allowed on the basis of vague allegations, it would not only undermine the morale of presiding officers but also make the discharge of their judicial functions extremely difficult.

13. The Hon'ble Supreme Court of India, in "Mona Arnesh Goyal vs. Arnesh Satya Goyal" reported in AIR 2000 SC 3512; "Vaishali Shridhar Jagtap vs. Shridhar Vishwanath Jagtap" reported in AIR 2016 SC 3584;

"Anjani Ashok Sadhwani vs. Ashok Kishinchand Sadhwani" reported in AIR 2009 SC 1374; and "Sunita Singh vs. Kumar Sanjay" reported in 2002 AIR SC 396, has held that in matrimonial cases, the convenience of the wife should be given paramount consideration while deciding transfer applications.

It is also to be noted that the Hon'ble Supreme Court, on (Uploaded on 29/10/2025 at 04:01:00 PM) [2025:RJ-JD:46200] (9 of 10) [CTA-309/2024] 28.07.2025, while hearing SLP (Crl.) No.3171/2025 titled Himanshu Choradia vs. State of Rajasthan, directed all courts to expedite the hearing in all matters inter se between the parties. Multiplicity of proceedings in different districts would only delay the process and cause undue hardship to the litigating parties.

14. In view of the above and upon perusal of the record, this Court finds that comparative hardship is greater for the wife. Accordingly, it is ordered that the following cases pending before the Family Court, Nimbahera, shall be transferred to Family Court No.2, Udaipur, where other matrimonial proceedings between the parties are already pending:

S.No Case title/ Case No. Court Nature of Case . parties

1. Himanshu v. 129/2024 Family Court/ Petition under Arushi District Section 13, Hindu Court, Marriage Act.

Nimbahera

2. Himanshu v. 104/2024 Family Court/ Petition under Arushi District Section 10, Hindu Court, Marriage Act.

Nimbahera

15. The Family Court at Udaipur, immediately upon receiving the case files and records, shall make an endeavour to decide the cases between the parties as expeditiously as possible, keeping in view the directions issued by the Hon'ble Supreme Court on 28.07.2025 in SLP (Crl.) No.3171/2025. The Court shall not grant unnecessary adjournments, and the parties are directed to cooperate with the Court for early disposal of the matters.

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16. In the result, S.B. Civil Transfer Application No.309/2024 and S.B. Civil Transfer Application No.174/2025 are allowed, whereas S.B. Civil Transfer Application No.75/2025 is dismissed.

17. No order as to costs.

(KULDEEP MATHUR),J 153-155 divya/-

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